

DEPARTMENT OF VETERANS AFFAIRS

**SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH FAR 13.5**

Acquisition Plan Action ID: 36C242-25-AP-1190

1. **Contracting Activity:** Department of Veterans Affairs, VISN 02, Network Contracting Office (NCO) 2
2875 Union Road, Suite 3500, Cheektowaga, NY 14227.

2237 # 528-25-2-4803-0303

2. **Nature and/or Description of the Action Being Processed:**

This is a request for a sole source requirement for a Full NXEOL Service Contract for the maintenance of four (4) sterrad sterilizers located at the Buffalo VA Medical Center. The proposed purchase order shall be provided to Advanced Sterilization Products Service Inc., 33 Technology Drive, Irvine, CA 92618-2346 from 03/01/2025 to 02/28/2026, to include four (4) option years, in the amount of \$ [REDACTED].

3. **Description of Supplies/Services Required to Meet the Agency's Needs:**

The proposed firm fixed price purchase order is to provide a service contract for the maintenance of the following Sterrad Sterilizer equipment.

Equipment Description	Serial #	Month of Service
Sterrad NX Sterilization System	0033111612	February
Sterrad NX Sterilization System	0033111581	June
Sterrad (R) 100NX (TM) 1-DR Sterilizer	1041110011	February & August
Sterrad (R) 100NX (TM) 1-DR Sterilizer	1041110014	February & August

4. **Statutory Authority Permitting Restricted Competition:**

FAR 13.5 Simplified Procedures for Certain Commercial Items. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 13.5 is 41 U.S.C. § 1901 and is implemented by FAR 13.106-1(b)(2) for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**

- (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements
- () Unusual and Compelling Urgency
- () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services
- () International Agreement
- () Authorized or Required by Statute
- () National Security
- () Public Interest

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

A proprietary letter from Advanced Sterilization Products Services Inc. was received and states that servicing is only to be completed by AP trained and certified persons.

A general search of the ASP Inc. website was conducted, page 63 of the Instructions for Use (IFU) document states that repairs and adjustments should only be attempted by Sterrad technicians that are fully trained to maintain and repair Sterrad equipment to avoid risk of system malfunction, and void of warranty.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:

A search of SAM.gov validated that Advanced Sterilization Products Services Inc. has an active registration as a large business under NAICS code 811210.

A general search of GSA eLibrary using keywords "Sterrad Sterilizers" identified one (1) schedule available, 36F79719D0090. Further search of GSA eLibrary using keywords "Advanced Sterilization Products" identified the same available schedule, 36F79719D0090, for sterilizer and sanitizer equipment. Upon search of GSA Advantage, it was revealed that 36F79719D0090 does not include the equipment necessary for the completion of this requirement.

A general search of SBA DSBS search engine was conducted using NAICS code 811210 and keywords "Sterrad Sterilizer" identified zero (0) vendors that matched the search criteria. An additional search of DSBS using keywords "Advanced Sterilization Products" yielded zero (0) results.

An additional search of VA's VetCert database using keywords "Advanced Sterilization Products Services Inc." revealed that this vendor is not registered in the database.

An Intent to Sole Source Notice (36C24225Q0238) was posted on SAM.gov from 01/14/2025 to 01/21/2025 and received zero (0) responses.

A proprietary letter from Advanced Sterilization Products Services Inc. was received and states that servicing is only to be completed by AP trained and certified persons.

A general search of the ASP Inc. website was conducted, page 63 of the Instructions for Use (IFU) document states that repairs and adjustments should only be attempted by Sterrad technicians that are fully trained to maintain and repair Sterrad equipment to avoid risk of system malfunction, and void of warranty.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

Price reasonableness was determined by comparing the vendors quoted annual price to the previous procurement (36C24220P0362: 03/01/2024 to 02/28/2025). 36C24220P0362 has an annual (final option year) price of \$ [REDACTED] for the maintenance of four (4) sterrad sterilizers. The annual (base year) cost quoted by Advanced Sterilization Products Services (ASP) Inc. for the

VHAPG Part 813.5 Simplified Acquisition Procedures for Certain Commercial Items
Attachment 1: Request for Sole Source Justification >SAT-\$7.5M under FAR13.5

replacement service contract is [REDACTED] for four (4) Sterrad sterilizers. This is an increase of \$ [REDACTED] or [REDACTED]%. [REDACTED] % of this increase can be attributed to normal industry inflation of option years, and that the previous requirement was awarded prior to COVID and its resulting inflation. The price quoted by ASP Inc. for the replacement service contract is also discounted by [REDACTED] %.

Price reasonableness was also determined by comparing the price of the quote received from Advanced Sterilization Products Services Inc. for the Full NXEOL service maintenance of four (4) Sterrad Sterilizers, to the price of contract 36C24118P1005 for similar services located at the West Roxbury VA Medical Center ending on 10/01/2021 in the amount of \$ [REDACTED]. The total price of the quote received from Advanced Sterilization Products Services Inc. is \$ [REDACTED], which is \$ [REDACTED] or [REDACTED] % less than the cost of contract 36C24118P1005. Therefore the quote received from Advanced Sterilization Products Services Inc. shall be considered fair and reasonable.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted: See section 6.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition: N/A

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

Advanced Sterilization Products Services Inc., 33 Technology Drive, Irvine, CA 92618-2346

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

None, as the reason for this sole source are certifications associated with Sterrad equipment.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Lisa Rummings
Administrative Officer/COR
Buffalo VA Medical Center

Date

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer or Designee's Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Nathan Northrup
Contracting Officer, Services Team 1
RPO East, NCO 2 Contracting Office

Date

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K)**: I certify the justification meets requirements for other than full and open competition.

Joseph Cellino
Branch Chief, Services Team 1
RPO East, NCO 2 Contracting Office

Date